

money has not been paid, it will be a charge on the father's assets as an ordinary debt (*f*); and the conveyance, where the contract in favour of the wife or child remains to be executed, will be made to the wife or child, though the real purchaser's executor pays the purchase-money, for it is not the case of a volunteer (*viz.*, the wife or child), calling for specific performance, but the vendor on his side has a right to enforce the contract and compel payment of the price, and then the Court settles the conveyance in the form in which, according to the contract, it was meant to be taken, *viz.*, in favour of the wife or child (*g*).

* 16. **Advancement applies to personalty.** — Of [*179] course, the doctrine of advancement applies to personal as well as real estate; as where a father purchases stock in the name of his son (*a*), or daughter (*b*), [or transfers stock into the joint names of a married daughter and her husband (*c*).]

17. **Solicitor.** — In a recent case, where money was lent out in the name of a person who was both *son* and *solicitor* of the owner of the sum lent, it was held that the particular relation of solicitor prevented the application of the general rule (*d*).

(*f*) *Redington v. Redington*, 3 Ridg. 106, see 200; and see *Nicholson v. Mulligan*, 3 I. R. Eq. 308.

(*g*) *Drew v. Martin*, 2 H. & M. 130; and see *Nicholson v. Mulligan*, 3 I. R. Eq. 308.

(*a*) *Dummer v. Pitcher*, 2 M. & K. 263; *Sidmouth v. Sidmouth*, 2 Beav. 447; *Hepworth v. Hepworth*, 11 L. R. Eq. 10; *Fox v. Fox*, 15 Ir. Ch.

Rep. 89; and see *Bone v. Pollard*, 24 Beav. 283; *Devoy v. Devoy*, 3 Sm. & G. 403.

(*b*) *O'Brien v. Sheil*, 7 I. R. Eq. 255.

[(*c*) *Batstone v. Salter*, 10 L. R. Ch. App. 431.]

(*d*) *Garrett v. Wilkinson*, 2 De G. & Sm. 244.